

25STCV05823 25STCV05823

County: los-angeles

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Case Number: 25STCV05823 Hearing Date: September 3, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department 508

YADIRA

ESCAMILLA, et al.,

Plaintiffs,

vs.

FCA US,

LLC, et al.,

Defendants.

Case No.:

25STCV05823

Hearing Date:

September 3, 2026

Hearing Time:

8:30 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANTS FCA

US LLC AND CHAMPION DODGE LLC DBA CHAMPION CHRYSLER JEEP DODGE RAM FIAT'S MOTION
TO DISMISS PLAINTIFFS' FIRST AMENDED COMPLAINT FOR FAILURE TO AMEND

Background

Plaintiffs Yadira Escamilla and Anthony D

Escamilla (jointly, "Plaintiffs") filed this lemon law action on March 3, 2025
against Defendants FCA US, LLC ("FCA") and Champion Chrysler Jeep Dodge Ram
Fiat. On August 14, 2025, Plaintiffs filed the operative First Amended
Complaint ("FAC") alleging six causes of action for (1) violation of
subdivision (d) of Civil Code section 1793.2,
(2) violation of subdivision (b) of Civil
Code section 1793.2, (3)
violation of subdivision (a)(3) of Civil Code section 1793.2, (4) breach of the implied warranty of
merchantability, (5) negligent repair, and (6) fraudulent inducement
concealment.

On

June 15, 2026, the Court ruled on FCA's demurrer to Plaintiffs' FAC as follows:
sustained the first and second causes of action without leave to amend, sustained
the third and sixth causes of action with leave to amend, and overruled the
fourth cause of action. The Court "order[ed] Plaintiffs to file and serve an
amended complaint, if any, within 20 days of this Order." (Order 6/15/26, 13:23-24.)
Plaintiffs did not file an amended complaint.

Defendants

FCA and Champion Dodge LLC dba Champion Chrysler Jeep Dodge Ram Fiat ("Champion"),
erroneously sued as Champion Chrysler Jeep Dodge Ram Fiat, (jointly, "Defendants") now move to dismiss the
first, second, third, and sixth causes of action in Plaintiffs' FAC, for
failure to amend, pursuant to Code of Civil Procedure
section 581, subdivision (f)(2). Plaintiffs filed an untimely opposition.
The opposition was accompanied by a declaration attesting to attorney fault for
its untimeliness, pursuant to Code of Civil Procedure
section 473, subdivision (b). The Court will consider Plaintiffs'

opposition. Defendants did not reply.

Discussion

Defendants move to dismiss the FAC, pursuant to Code

of Civil Procedure section 581, subdivision (f)(2), which states that “[t]he court may dismiss the complaint as to that defendant when ... after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.” Defendants assert that “[t]he California Court of Appeals has affirmatively held that a trial court may enter a judgment dismissing an action after it has sustained a demurrer to the complaint if the Plaintiffs fails to amend.” (Mot., 2:26-28; see *Sierra Inv. Corp. v. Sacramento County* (1967) 252 Cal.App.2d 339, 346-347 [“It is almost axiomatic that the trial court may enter a judgment of dismissal after it has sustained a demurrer to the complaint if the plaintiff elects to stand on the complaint and fails to amend [citations].”].)

Defendants assert that “[t]he procedural history in this matter is exactly contemplated under Section 581(f)(2). In June of 2026, FCA US’ Demurrer to First Amended Complaint was sustained as to the third, fourth, and fifth causes of action in Plaintiffs’ First Amended Complaint with thirty days leave to amend. The time to amend has passed and Plaintiffs have failed to amend or otherwise demonstrate any intent to prosecute this matter. As such, the Court should dismiss the matter, with judgement entered in FCA US’s favor.” (Mot., 3:5-10.)

In opposition, Plaintiffs assert that “Defendants move under Code of Civil Procedure section 581, subdivision (f)(2), to dismiss the first, second, third, and sixth causes of action and to enter judgment in their favor because Plaintiffs did not file a further amended complaint after the June 15, 2026, demurrer ruling. The Motion should be denied in its entirety. This case is not over. The fourth cause of action for breach of the implied warranty of merchantability against FCA survived demurrer, and the fifth cause of action for negligent repair against Champion was never demurred to and has already been answered. Section 581, subdivision (f)(2) does not authorize dismissal of an entire pleading, and it does not authorize judgment for Defendants, while live claims remain. Nor does it reach the first and second causes of action, which were sustained without leave to amend and are therefore

not claims Plaintiffs could have ‘failed to amend.’” (Opp., 2:7-16.) Plaintiffs assert that “[b]eyond these threshold defects, dismissal under Section 581 is a discretionary terminating sanction” (Opp., 2:18-20), and Plaintiffs cite to *Stephen Slesinger, Inc. v. Walt Disney Co.* (2007) 155 Cal.App.4th 736, 764, where the Court of Appeal stated that “dismissal is always a drastic remedy to be employed only in the rarest of circumstances.” (Disapproved of by *City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal.5th 46 on separate grounds.)

In Plaintiffs’ declaration in support, Plaintiffs’ counsel attests that “[a]fter evaluating the ruling, Plaintiffs made a considered decision not to file a further amended pleading and instead to stand on the operative First Amended Complaint and proceed on the surviving claims.” (Olarenschaw Decl., ¶ 6.) Counsel further states that “Plaintiffs intend to prosecute the fourth cause of action against FCA, as to which the Court overruled the demurrer, and the fifth cause of action against Champion, which Champion has answered. Plaintiffs never sought dismissal of, and did not abandon, those claims.” (Olarenschaw Decl., ¶ 7.) Counsel explains that “Plaintiffs’ decision not to further amend the third and sixth causes of action was a deliberate, good-faith litigation choice. It did not result from neglect, inadvertence, or any misconduct by Plaintiffs or their counsel, and it was not intended to delay or obstruct these proceedings.” (Olarenschaw Decl., ¶ 8.)

Based on the foregoing, the Court denies Defendants’ motion to dismiss. As Defendants’ notice of motion states, they only seek judgment entered in their favor for the first, second, third, and sixth causes of action. However, the statute states that “[t]he court may dismiss the complaint as to that defendant...” (Code Civ. Proc., § 581, subd. (f), emphasis added.) The plain language of the statute appears to contemplate that a defendant may dismiss the complaint when all causes of action alleged against the defendant are sustained with or without leave to amend, and the plaintiff does not file an amended complaint. Here, however, one cause of action against FCA still stands, and the singular cause of action alleged against Champion was never demurred to. Accordingly, dismissal as to either defendant would be improper. FCA’s motion also does not cite any case law demonstrating that this statute vests the Court with the power to dismiss individual causes of action, rather than the complaint as a whole or as to a specific party. Given this, Defendants’ motion to dismiss is denied because Plaintiffs still have a viable cause of action against both FCA and Champion.

Conclusion

Based on the foregoing, FCA's motion to dismiss is DENIED.

Plaintiffs

are ordered to give notice of this Order.

DATED: September
3, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court